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JUDGMENT SHEET

LAHORE HIGH COURT, LAHORE

JUDICIAL DEPARTMENT

Writ Petition No. 17090/2025

Ch. Fawad Ahmed

Vs.

Government of Pakistan and others

JUDGMENT

Date of hearing	20.03.2025
For the Petitioner:	Mian Ali Haider, Advocate, with M/s Tahir Nasrullah Warraich, Zafar Iqbal, Najeeb Faisal Chaudhry, Ibrar Saeed Chadhar, and Mahar Muhammad Arshad, Advocates.
For Respondent No.1:	Mr. Ijaz Rehmat Basra, Assistant Attorney General.
For Respondents No.2 to 5:	Mr. Imran Abbas Sahi, Assistant Advocate General, and Rana Muhammad Shafique, Deputy Prosecutor General.

Tariq Saleem Sheikh, J. – The Petitioner served as a Federal Minister in the Pakistan Tehreek-e-Insaf (PTI) government, which came to power following the 2018 General Election. However, on 10.04.2022, it was dismissed after the no-confidence motion against Prime Minister Imran Khan succeeded. The party started agitation which plunged the country into deep chaos. On 09.05.2023, Imran Khan was arrested whereupon PTI workers and supporters staged demonstrations across several cities, including Karachi, Lahore, Islamabad, Rawalpindi, Sargodha, Gujranwala, Faisalabad, and Multan. Multiple military installations and public properties were targeted and vandalized, leading to the registration of various FIRs, including the following:

S. No.	FIR No.	Date	Police Station	Place of occurrence	Date and time of occurrence
1	97/2023	10.05.2023	Sarwar Road, Lahore	Sherpao Bridge, Lahore.	10.05.2023 at 3:00 a.m.
2	366/2023	10.05.2023	Model Town, Lahore	96-H Model Town, Lahore.	10.05.2023 at 3:55 a.m.
3	367/2023	10.05.2023	Model Town, Lahore	180-H Model Town, PML(N) Markazi Secretariat	10.05.2023 at 4:40 a.m.
4	852/2023	10.05.2023	Race Course, Lahore	Club Chowk, Lahore.	10.05.2023 at 10:45 a.m.
5	1078/2023	11.05.2023	Naseerabad, Lahore	Kalma Chowk, Lahore.	11.05.2023 at 1:50 p.m.
6	1280/2023	11.05.2023	Gulberg, Lahore	Chen-One Chowk, Lahore.	10.05.2023 at 7:00 p.m.
7	1570/2023	11.05.2023	Mughalpur, Lahore	Allama Iqbal Road near Dharampura Canal Bridge, Lahore.	11.05.2023 at 9:45 a.m.
8	103/2023	12.05.2023	Sarwar Road, Lahore	Rahat Bakery near PSO Petrol Pump, Lahore Cantt.	09.05.2023 at 4:00 p.m.
9	1283/2023	12.05.2023	Gulberg, Lahore	Opposite National Park, Lahore.	10.5.2023 at 8:30 p.m.
10	109/2023	13.05.2023	Sarwar Road, Lahore	Rahat Bakery near Jinnah House, Lahore Cantt.	09.05.2023 at 6:00 p.m.
11	108/2023	13.05.2023	Sarwar Road, Lahore	Rahat Bakery near Jinnah House, Lahore Cantt.	09.05.2023 at 6:30 p.m.

2. The Petitioner was not initially named in any of the FIRs listed above. He was later implicated on the allegation that, in collaboration with other PTI leaders, he incited public unrest through social media statements and thereby abetted the events of 9th May 2023, which continued over the following days.

3. The Petitioner contends that all the FIRs listed above arise from the same alleged conduct – his political expression on social media – and stem from a common cause, namely, the public reaction to the arrest of Imran Khan on 9th May 2023. He submits that the allegations across these FIRs are substantially similar, but the authorities have artificially split a continuous sequence of events into multiple cases. He invokes the “doctrine of sameness” and argues that the FIRs should be consolidated and tried in a single proceeding. The Petitioner further submits that the allegation against him in all the above-mentioned cases is that he instigated PTI supporters to engage in violence. Under Illustration (a) to section 180 of the Code of Criminal Procedure 1898 (hereinafter referred

to as the “Code” or “Cr.P.C.”), abetment charges may be tried where the principal offence occurred. Since a trial on the same allegations is underway in District Faisalabad, the above-listed cases should be transferred there for a joint trial. In support, the Petitioner relies on ***Mst. Sughran Bibi v. The State*** (PLD 2018 SC 595), ***Shahid Ali v. The State and others*** [PLJ 2024 Peshawar (Note) 222], and ***Mst. Sanam Javed v. Special Judge Anti-Terrorism Court, Gujranwala and others*** (2025 PCr.LJ 148).

4. Based on the above contentions, the Petitioner seeks the following relief through this petition under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 (the “Constitution”):

“In view of the above-mentioned submissions and the principle enunciated in the case of *Mst. Sughran Bibi v. The State* (PLD 2018 SC 595), it is most respectfully prayed that this Hon’ble Court may graciously be pleased to declare that the registration of multiple FIRs on the same set of allegations and facts is in violation of the principle laid down in *Mst. Sughran Bibi v. The State*, which mandates that there shall be only one FIR for one incident and any other version is to be recorded within the framework of the same FIR and the investigation and trial proceedings in the FIRs registered in District Lahore, as detailed in the aforementioned tabulation, be suspended, as the trial on the same allegations has already been initiated in District Faisalabad, in order to ensure consistence in judicial proceedings and prevent conflicting judgments.”

5. We have heard the Petitioner’s counsel, Mian Ali Haider, Advocate, and the Law Officers and examined the available record.

6. Section 154 Cr.P.C. mandates that every information relating to the commission of a cognizable offence, if given orally to the officer in-charge of a police station, shall be reduced to writing by him or under his direction, read over to the informant. Furthermore, every such information shall be signed by the person giving it, and its substance shall be entered in a book maintained by the officer in such form as may be prescribed by the Provincial Government. There was, however, a divergence of judicial opinion in our country on whether a second FIR could be registered regarding the same occurrence, particularly when it involved a different version of the same incident. In ***Mst. Sughran Bibi v. The State*** (PLD 2018 SC 595), a larger Bench of the Supreme Court of Pakistan authoritatively settled the controversy and explained that the correct legal position was as follows:

- (a) An FIR recorded under section 154 Cr.P.C. is merely the first information received by the local police regarding the commission of a cognizable offence.
- (b) If the information provided also includes a version of how, by whom, and in what context the offence was committed, that account represents only the informant's version. It is not to be unreservedly accepted by the investigating officer as the truth or the complete narrative.
- (c) Upon registration of an FIR, a criminal "case" comes into existence, which is assigned a number that remains associated with the matter until its final disposal.
- (d) During the investigation, the officer may record any number of versions of the same incident as presented to him by different individuals. All of them are documented under section 161 Cr.P.C. within the same case. No separate FIR is to be registered for any new version of the same incident brought to the officer's attention during the investigation.
- (e) The investigating officer is obliged to investigate the matter from all possible angles while keeping in view all the versions of the incident brought to his notice. As per Rule 25.2(3) of the Police Rules, 1934, the officer must discover the facts and identify the actual offender(s) without prematurely adopting a position for or against any individual.
- (f) Ordinarily, no person should be arrested merely because they are named as an accused in an FIR or any version of the incident brought to the investigating officer's notice. Arrest should only be made when the officer is satisfied that sufficient justification exists, based on the relevant provisions of the Code, and the Police Rules, 1934. A suspect is not to be arrested as a matter of course. Unless circumstances demand immediate action, the arrest should be deferred until enough material or evidence is available on record to *prima facie* support the allegations or indicate the suspect's involvement in the offence.
- (g) Upon conclusion of the investigation, the report submitted under section 173 Cr.P.C. must be based on the actual facts discovered, regardless of the version presented by the first informant or any other person.

7. It is noteworthy that the judgment in *Sughran Bibi* was based on the interpretation of the various provisions of the Code and the Police Rules. Although the Court did not refer to any "doctrine of sameness" in its reasoning, the decision is often regarded as the procedural foundation for that doctrine in Pakistan's criminal law. In the present case, the Petitioner seeks to extend the principle enunciated in *Sughran Bibi* beyond its original contours. He argues that even where separate FIRs have been registered in different areas – triggered by a common cause or

forming part of a continuing sequence of events – they should be consolidated under the doctrine of sameness. To evaluate this contention, it is first necessary to understand the nature and scope of that doctrine.

8. Article 13(a) of the Constitution ordains that no person shall be prosecuted or punished for the same offence more than once. It protects individuals from repeated prosecutions once a final judgment – whether of acquittal or conviction – has been rendered and serves as a bulwark against abuse of power by the State. Although sometimes associated with this protection, the doctrine of sameness is distinct and has developed within the procedural framework of criminal law. It is typically invoked in cases where multiple FIRs are registered (or sought to be registered) for the same event or set of facts. It protects the accused from repeated trials for substantially the same conduct. This application of the doctrine promotes judicial economy, prevents multiplicity of trials, and upholds procedural fairness in the administration of criminal justice. The question as to whether the doctrine is applicable in a given case must be determined upon careful consideration of all relevant facts. It does not apply where the offences alleged in each FIR pertain to distinct incidents involving different victims, places, and consequences, even if triggered by a common cause.

9. In the present case, each FIR arises from a distinct occurrence that took place at a different time and, in some instances, at a different location. These events involve separate accused persons, acts of violence, and evidentiary material, albeit all are said to have been precipitated by a common political development, namely, the arrest of Imran Khan. The Petitioner has been implicated in all these FIRs on the allegation that he abetted the violence through social media messaging. While his alleged conduct may be broadly similar across the cases, the acts of violence forming the subject matter of the respective FIRs are neither identical nor part of a single transaction. As such, the doctrine of sameness does not justify a blanket consolidation of all FIRs. However, where his alleged abetment is directly linked to the events in a particular FIR, a joint trial with the principal accused named therein may be permissible under clause (b) of section 239 Cr.P.C.

10. The Petitioner's reliance on the Peshawar High Court's judgment in *Shahid Ali v. The State and others* [PLJ 2024 Peshawar (Note) 222] is misplaced. In that case, a video was uploaded on social media showing the accused addressing a gathering of 200–250 people, during which he used abusive and derogatory language against the sitting government and national institutions and incited the public to revolt. Although an FIR had already been registered at Police Station Spin Daim, South Waziristan Lower, a second FIR was lodged at Police Station Saidu Sharif, Swat, regarding the same incident and social media post. The issue before the High Court was whether multiple FIRs could be registered for the same occurrence. The Court held that the second FIR was impermissible and accordingly quashed it. The circumstances of *Shahid Ali* are distinguishable from those in the present case. Here, as discussed, although the public reaction to Imran Khan's arrest may have been a common catalyst, each FIR pertains to a separate incident involving different victims, distinct acts of violence, and, in some cases, different locations. Even where the place of occurrence overlaps, the events, participants, and evidentiary bases remain sufficiently distinct to warrant separate treatment. Therefore, *Shahid Ali's* legal reasoning does not apply.

11. Now, we turn to the Petitioner's request for the transfer of cases to District Faisalabad for which he invokes the jurisdictional flexibility afforded under the Code, particularly in relation to abetment. This request must be considered in light of the statutory scheme governing jurisdiction and the framing of charges, specifically section 233 Cr.P.C.

12. Part VI Chapter XV of the Code deals with the jurisdiction of the criminal courts in inquiries and trials. Sections 177, 178, 179 and 180 Cr.P.C. are relevant for our present purpose. Section 177 Cr.P.C. enunciates the general principle that every offence shall ordinarily be inquired into and tried by the court within whose local jurisdiction it was committed. However, section 178 Cr.P.C. empowers the Provincial Government to direct that any case or class of cases be tried in a different Sessions Division. This is subject to the proviso that no such directive shall be repugnant to any direction previously issued by the High Court

under section 526 Cr.P.C. or any other law for the time being in force. Section 179 Cr.P.C. stipulates that where a person is accused of the commission of an offence because of an act done whose consequence has ensued, the offence may be inquired into or tried by a court having jurisdiction over the area where either the act was done, or the consequence occurred. Section 180 Cr.P.C. further provides that where an act is an offence by virtue of its relation to another act – whether such other act is also an offence, or would constitute an offence if committed by a person capable of doing so – the offence may be inquired into or tried by a court having jurisdiction over the area in which either of the two acts was committed. Illustration (a) to section 180 Cr.P.C. stipulates that a charge of abetment may be inquired into or tried by the court within whose jurisdiction the abetment occurred or where the offence abetted was committed.

13. The Petitioner invokes Illustration (a) to section 180 Cr.P.C. to argue that, since the alleged act of abetment – namely, instigation through social media – originated from a single location, all consequential offences across districts may be tried collectively at that place, irrespective of where the actual incidents occurred. In the alternative, he requests for the transfer of all the subject cases to Faisalabad, where proceedings arising from identical allegations are already pending adjudication, for a joint trial. However, this interpretation stretches section 180 beyond its intended scope. Section 180, read with its Illustration (a), merely confers concurrent jurisdiction on both courts: one at the place of abetment and the other where the abetted offence occurred. It does not mean that multiple distinct offences committed in different districts by different actors – allegedly in consequence of the same act of abetment – can be tried together at the place where the abetment occurred.

14. Section 233 Cr.P.C. explicitly mandates that there shall be a separate charge for every distinct offence, and each such charge shall be tried separately, except where joinder is expressly permitted under sections 234, 235, 236, or 239 of the Code. Under clause (a) of section 239 Cr.P.C., a court may conduct a joint trial of persons accused of the same offence committed during the same transaction. Clause (b) allows a

joint trial of a principal offender and a person accused of abetment, and clause (d) states that persons accused of different offences committed in the course of the same transaction may be charged and tried together.

15. The phrase “same transaction” is not defined in the Code. However, it has been judicially interpreted to mean a series of events or acts connected by proximity in time and place, continuity of action, commonality of purpose, and factual interdependence that form one indivisible whole. In ***Babulul Chuukhani v. King-Emperor*** (65 I.A. 158), the Privy Council held that the determination of whether various acts form one transaction depends on the “accusations” made rather than the evidence or outcome of the trial. In ***S. M. K. Alvi v. The Crown*** (PLD 1953 FC 189), the Federal Court ruled that acts committed at different times and locations may nonetheless constitute one transaction if unified by a common design, whereas acts occurring simultaneously and at the same place may still form distinct transactions if unconnected in purpose. The decisive factor is the existence of a shared scheme or intent.

16. In ***Md. Mosaddar Hoque and Md. Abdul Rouf v. The State*** [PLD 1958 SC (Pak) 131], Shahabuddin J., speaking for the Supreme Court of Pakistan, held that clause (a) of section 239 Cr.P.C. refers not to persons accused of “offences of the same kind”, but to those charged with “the same offence”, meaning an offence arising out of the same act or series of acts. This is evident from the phrase “in the course of the same transaction” in clause (a). Regarding the word “different” in clause (d) of section 239 Cr.P.C., His Lordship noted that while it denotes distinct offences, it essentially conveys the idea of “not being the same” and in context in which it appears, it refers to offences other than “the same offence” or “offences of the same kind.” His Lordship further observed that since the term “transaction” is not defined in the Code, it is for the court to determine, on the facts of each case, whether a given set of acts constitutes the “same transaction” under sections 235 and 239. The Court cited with approval *Choragudi Yenkatadri v. Emperor* (ILR 33 Mad. 522), where Benson J. cautioned against stretching procedural rules to cover doubtful cases. It further held that, in determining what constitutes “the same transaction”, the relevant tests include proximity of time and

place, community of purpose or design, and continuity of action. The latter two are the essential elements required to link distinct acts into a single transaction. Proximity of time and place alone is insufficient.

17. In ***Shahadat Khan and another v. Home Secretary to the Government of West Pakistan and others*** (PLD 1969 SC 158), the Supreme Court held that sections 234, 235, 236, and 239 Cr.P.C. are exceptions to the general rule laid down in section 233, which mandates that for every distinct offence, there shall be a separate charge and each such charge must be tried separately. The Court further observed that a joint trial is by no means compulsory under these provisions. Nor can it be said that if several accused persons charged for committing the same offence in the course of the same transaction are tried separately, then the trial will, irrespective of any question of prejudice, be illegal. Sections 234 to 239 Cr.P.C. are merely enabling provisions and do not make it incumbent upon the criminal courts to hold a joint trial in every case. Notwithstanding these provisions, a joint trial may not be held if it bewilders or prejudices a particular accused. Whether such unity of action and community of purpose exists in a particular set of FIRs is a question of fact to be determined by the competent trial court on a case-to-case basis.

18. In ***Khan Mohammad and others v. The State*** (1971 PCr.LJ 762), this Court laid down key factors for determining whether multiple acts form a single transaction: (i) proximity of time, (ii) proximity of place, (iii) whether the acts are causally related, (iv) whether they are related as principal and subsidiary acts, (v) community of purpose, and (vi) continuity of action. While proximity and causal links are relevant, the essential elements are community of purpose and unity of action. Even if the different acts are connected with each other as “cause and effect”, it is not necessary that they should form parts of the same transaction. If, however, “community of purpose” is present in the shape of a conspiracy, plan, scheme, or design, then the various offences committed in pursuance thereof shall be parts of the same transaction even if they are widely separated in point of time or place of occurrence.

19. It is pertinent to note that although section 239 Cr.P.C. and the doctrine of sameness both employ the concept of a “same transaction”, they operate in distinct legal spheres and serve different purposes. Section 239 is a permissive procedural provision that allows the joinder of accused persons in a single trial, subject to statutory criteria. In contrast, the doctrine of sameness is a judicially developed principle rooted in procedural fairness that protects individuals from facing multiple prosecutions for the same alleged conduct. While the two may intersect in some instances, particularly where overlapping factual allegations arise, their legal foundations and objectives remain separate.

20. Given the above, whether several occurrences or episodes constitute one legal transaction is a question of fact that has to be determined by reference to the evidence and circumstances of each case. In the present case, while most FIRs describe incidents that are separated by time, location, and actors, some FIRs – such as those registered at Sarwar Road Police Station (FIR Nos. 103, 108, and 109 of 2023) – appear to involve events unfolding within a short period and in close physical proximity, possibly with overlapping participants and context. In such limited instances, the competent court may consider a joint trial under clause (a) or (b) of section 239 Cr.P.C. if the factual record supports it. However, a general consolidation of all FIRs across police stations is not warranted, as the incidents are too dispersed and varied to satisfy the “same transaction” standard.

21. The Petitioner’s request for consolidation of all the subject cases and their transfer to District Faisalabad is also untenable for the same reasons we have discussed above. It is based on the same erroneous construction of section 180 Cr.P.C. that we have already rejected and disregards both the factual distinctiveness of the incidents underlying each FIR and the statutory constraints on joint trials.

22. We would fail in our duty if we did not consider the judgment in *Sanam Javed*, cited by the Petitioner. That case also arose from the 9th May 2023 unrest, and the accused was implicated in successive FIRs based on the same alleged act of abetment through social media. The High Court held that repeated prosecution on the basis of a

single social media post violated Article 13(a) of the Constitution and that section 179 Cr.P.C. could not be invoked to justify prosecuting the same offence in multiple jurisdictions. In our view, the constitutional protection under Article 13(a) is generally attracted only after a person has been prosecuted or punished for an offence. Its extension to the investigative stage, as suggested in *Sanam Javed*, was based on the peculiar circumstances of that case and does not create a general bar to proceedings under section 179 Cr.P.C. In contrast, the present case involves a series of factually distinct incidents and acts of violence. Accordingly, the Petitioner cannot press into service the judgment in *Sanam Javed* to support his request for consolidation or transfer of cases.

Disposition

23. This petition has no merit and is **dismissed**. However, this judgment does not preclude the competent trial court from considering a limited joinder under section 239 Cr.P.C. with respect to specific FIRs where the factual record establishes proximity in time, place, and continuity of events.

(Syed Shahbaz Ali Rizvi)

Judge

(Tariq Saleem Sheikh)

Judge

Ahsan

Approved for reporting

Judge

Judge